



CHAPTER xlii.

An Act for conferring further powers on the Altrincham Gas Company and for providing for the raising of additional capital and for other purposes.

A.D . 915.

[2nd July 1915.]

WHEREAS by the Altrincham Gas Act 1872 (hereinafter referred to as "the Act of 1872") the Altrincham Gas Company (hereinafter referred to as "the Company") were incorporated and were empowered to manufacture and supply with gas the townships of Altrincham Rowdon Dunham-Massey Hale Ashley Timperley Baguley Carrington Partington Bollington and Ashton-upon-Mersey all in the county of Chester :

And whereas by the Altrincham Gas Act 1893 (hereinafter referred to as "the Act of 1893") the Company were empowered to construct further works and to raise additional capital and further powers in relation to their undertaking were conferred upon the Company :

And whereas the capital and borrowing powers of the Company are as hereinafter set forth :—

Capital.

Act of Parliament authorising Shares.	Description of Shares.	Maximum Dividend per cent.	Total paid up.	Premiums received.	Remain- ing to be issued.	Total autho- rised.
Act of 1872	Original Ordinary.	£10 on first £30,000 £7 on remaining £10,000.	£ 40,000 0 0	£ —	£ —	£ 40,000
Act of 1872	New Ordinary.	£7 on £40,000	40,000 0 0	—	—	40,000
Act of 1893	" "	£7 - - -	39,993 5 0	15,633 5 0	6 15 0	40,000
		£	119,993 5 0	15,633 5 0	6 15 0	120,000

A.D. 1915.

Borrowing.

Act of Parliament authorising Loan.	Description of Loan.	Rate of Interest.	Total Amount borrowed.	Extent of Borrowing Powers.
Act of 1872 Act of 1893	} Mortgages -	£4 per cent.	£24,300 }	£15,000 under Act of 1872 Also 1/4th of capital issued and paid up under Act of 1893.

And whereas the whole of the capital sums raised with the premiums thereon and the moneys borrowed have been applied to the general purposes of the Company to which capital is properly applicable :

And whereas the demand for gas in the district in which gas is supplied by the Company has greatly increased and is still increasing and the unexhausted capital and borrowing powers of the Company are wholly inadequate and it is expedient that further powers as to capital should be granted to the Company to enable them to lay down additional mains and provide further plant and to extend and develop the Company's business :

And whereas it is expedient that the Company should be authorised to raise additional capital for the purposes of their undertaking :

And whereas it is expedient that the other powers hereinafter mentioned should be conferred on the Company :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the Altrincham Gas Act 1915.

Collective titles.

2. The Acts of 1872 and 1893 and this Act may be cited together as the Altrincham Gas Acts 1872 to 1915.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction :

And in this Act—

A.D. 1915.

“The Company” means the Altrincham Gas Company;

“The Act of 1872” means the Altrincham Gas Act 1872;

“The Act of 1893” means the Altrincham Gas Act 1893;

“The Acts of 1872 and 1893” means the Altrincham Gas Act 1872 and the Altrincham Gas Act 1893.

4. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act:—

Incorporation of general Acts.

The Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871;

Provided that section 13 of the former Act shall read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section;

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts; and

The Companies Clauses Acts 1888 and 1889.

5. The Company may from time to time raise additional capital not exceeding in the whole sixty thousand pounds by the creation and issue (at their option) of new ordinary shares or new preference shares or partly by one and partly by the other of those modes respectively but the Company shall not issue any share created under the authority of this Act of less value than ten pounds nor shall any such shares vest in the person accepting the same unless and until the full price of such shares including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided always that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of sixty thousand pounds Provided also that the Company shall not issue as preference shares more than one half of the shares by

Additional capital.

A.D. 1915. — this section authorised and that the maximum dividend payable on any such preference shares shall not exceed six per centum per annum.

New shares
to be sold by
auction or
tender.

6.—(1) All shares created under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All shares so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk to each urban or rural district council or parish council and chairman of parish meeting having jurisdiction over any part of the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary shares of the Company in accordance with the provisions of sections 18 19 [and 20 of the Companies Clauses Act 1863

A.D. 1915.
—

and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares that if the aggregate amount of shares applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the shares sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares.

7. The Company may from time to time subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums as will (with the amounts already borrowed under the powers of the Acts of 1872 and 1893) not exceed in the whole one-third part of the total amount of the capital by this Act and the Acts of 1872 and 1893 authorised to be raised and at the time actually issued by ordinary shares but no part of the additional sum by this section authorised to be borrowed shall be borrowed until the whole of the ordinary shares at the time issued together with the premiums (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Additional
borrowing
powers.

- A.D. 1915. **8.** Notwithstanding anything in this Act the Company shall
Restriction as to raising money during war. not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.
- Borrowed money not to be converted into capital. **9.** The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital shall cease to apply to the Company.
- Priorities of mortgages. **10.** All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the commencement of this Act and subsisting at the commencement hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.
- Appointment of receiver. **11.** The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.
- Debenture stock. **12.** The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the commencement of this Act created and issued or granted by the Company under any previous or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock created or issued under the powers of this Act.
- Application of moneys. **13.** All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly

applicable and any sum of money which may arise by way of premium from the issue of shares under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend. A.D. 1915.

14. Save as otherwise provided in respect of such capital by the provisions of this Act the holders of shares in such additional capital shall be entitled to the like rights of voting and other rights qualifications and privileges in proportion to the amount of their shares from time to time paid up and be subject to the like provisions forfeitures and liabilities as the holders of shares in the original capital. Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares to which a preferential dividend shall be attached. Rights of shareholders.

15. The profits of the Company shall be divisible among the different classes of shareholders as prescribed by sections 16 and 17 of the Act of 1893 and the additional capital by this Act authorised to be raised by shares and actually paid up shall for the purposes of such division rank with and be deemed to form part of the additional capital authorised to be raised by the said Act of 1893. Division of profits of Company.

16. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be sufficient discharge to the Company. Receipts of persons under disability.

17. On and after the commencement of this Act all meetings of the Company shall be held at the general offices of the Company or at such other place within the limits of supply as the directors shall decide and give notice of in the notices convening such meeting. The ordinary general meetings of the Company shall be held yearly either in the month of February or the month of March and the quorum of every meeting of the Company shall be ten shareholders present personally or by proxy and holding in the aggregate shares of the nominal value of not less than five thousand pounds in the capital of the Company in respect of which they are entitled to vote. Annual meeting.

18. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director Notice of candidature for office of director.

A.D. 1915. dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

Power to
appoint
managing
director.

19.—(1) The directors may appoint one of their body to be a managing director of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of such modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Auditors.

20. The prescribed number of auditors shall be one or the members of one firm unless the number be increased to two by order of a general meeting of the Company and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or an accountant or firm of accountants approved by the Board of Trade but it shall not be necessary for such auditor or auditors to hold shares in the capital of the Company.

Remunera-
tion of direc-
tors and
auditors.

21. The remuneration of the directors and auditors shall from time to time be fixed by a general meeting of the shareholders and shall be paid out of the funds of the Company.

Power of
directors to
fix remunera-
tion of secre-
tary.

22. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

23. The directors may in any year without calling a meeting of shareholders for the purpose declare and pay an interim half-yearly dividend out of the then ascertained profits of the Company Provided that no such interim dividend shall exceed one half of the amount of the authorised maximum rate of dividend.

A.D. 1915.

Interim
dividends.

24. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Closing of
register of
transfers.

25.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charge for
gas supplied
by means of
prepayment
meters.

(2) The charge for the hire of any pre-payment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the pre-payment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connection therewith.

A.D. 1915.

(5) For the purpose of this section the expression "pre-payment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Application
of excess of
profits over
authorised
rates of divi-
dend.

26. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year :

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rate.

Company to
provide
apparatus
for testing
calorific
power of
gas.

27. Within six months after the commencement of this Act the Company shall provide at the testing place prescribed by section 56 of the Act of 1872 apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the Metropolitan gas referees for testing the calorific power of gas and the said testing place so provided shall be the testing place for the purposes of this Act.

Standard
calorific
power of
gas.

28. The gas supplied by the Company shall when tested in the mode and under the conditions for the time being prescribed by the Metropolitan gas referees be of a calorific power of 540 British thermal units and that power is in this Act referred to as "the standard calorific power."

Provisions
as to testing
for calorific
power.

29. The following provisions shall apply with regard to the testing for calorific power of the gas supplied by the Company within the limits of supply :—

(1) Not more than one testing for calorific power shall be made on any one day (reckoned from midnight to midnight) Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power by more than five per cent. a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day :

(2) The Company may if they think fit on each occasion of the testing of gas under the provisions of this

section be represented by some officer but such officer shall not interfere in the testing: A.D. 1915.

(3) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence:

(4) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for illuminating power shall cease to apply to the Company and sections 28 to 33 and section 36 of that Act in their application to the Company shall be construed as if calorific power were therein mentioned in lieu of illuminating power.

30. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power by more than seven and a half per centum they shall be liable to the following penalties in respect of any deficiency beyond such last-mentioned margin (that is to say):—

Penalties for deficient calorific power.

If the deficiency does not exceed 14 British thermal units a sum not exceeding two pounds:

If the deficiency exceeds 14 British thermal units but does not amount to 28 British thermal units a sum not exceeding five pounds:

For each complete 28 British thermal units of defective power a sum not exceeding ten pounds.

31. Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of the Altrincham Gas Acts 1872 to 1915 subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

Testing pressure of gas at public lamps.

32. The Company if and when required at any time within two years after the commencement of this Act by any consumer of gas supplied by the Company shall supply to such consumer and fix free of charge a sufficient number of flat flame burners suitable in all respects for the consumption of gas of the calorific power prescribed by this Act in substitution for the burners (not being incandescent burners) in use at the commencement of this Act.

Company to supply suitable burners gratis in exchange for certain burners in use.

A.D. 1915.

Notice of the provisions of this section shall be given on each demand note of the Company during the period of two years hereinbefore mentioned.

Saving as to penalties.

33. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was caused by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

For protection of Cheshire Lines Committee.

34. In executing and maintaining any works authorised by this Act in the limits of supply where the same will cross over or under or otherwise affect any railway or any part of the works or property of the Cheshire Lines Committee (hereinafter referred to as "the committee") the Company shall (except so far as it may be otherwise agreed between the committee and the Company) be subject to the following conditions:—

- (1) All such works shall be executed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the committee and (except in cases of emergency) according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section Provided that if for twenty-eight days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Company of his objections thereto he shall be deemed to have approved thereof:
- (2) If within twenty-eight days after the receipt of any such plans and drawings the committee give to the Company notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Company) which will cross over or under any railway or work belonging to them the committee may themselves execute such part of the work under the superintendence and to the reasonable satisfaction of the Company's engineer and recover the reasonable costs thereof from the Company:

A.D. 1915.
—

- (3) All works which the Company may execute under this section shall be so constructed as to cause no injury to the railways works and property of the committee or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Company shall make full compensation to the committee in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided :
- (4) The Company shall bear and on demand pay to the committee the reasonable expense of the employment by the committee during the execution of the works affecting the said railways of a sufficient number of inspectors watchmen and signalmen to be appointed by the committee for watching and signalling the same with reference to and during the execution of any such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors :
- (5) Any additional expense which the committee may reasonably and properly incur in maintaining their bridges and works by reason of the existence of any mains or pipes of the Company laid under the powers of this Act across over or under such bridges or works shall be paid by the Company :
- (6) Any dispute or difference which may arise between the committee and the Company with reference to the provisions of this section or in any way arising there-out or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the committee or the Company and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

A.D. 1915.

For protec-
tion of Lon-
don and
North West-
ern Railway
Company
and Great
Central and
North West-
ern Railways
Joint Com-
mittee.

35. The following provisions for the protection of the London and North Western Railway Company and the Great Central and North Western Railways Joint Committee (each of which is hereinafter referred to as "the railway company") shall be in force and have effect:—

- (1) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works which the Company are by this Act authorised to lay down or execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only (except in cases of emergency arising from defects in any of the mains pipes or other works of the Company) according to such plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Company who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company Provided always that if such principal engineer shall not approve or disapprove any such plans or the proposed manner of executing any such works of the Company within fourteen days after the same are submitted to him for his approval or if he shall refuse or neglect to superintend any works of the Company for the space of seven days and in cases of emergency forthwith after being requested by the Company to superintend the same the Company may proceed with the works without the approval of the plans and manner of executing the same or as the case may be without the superintendence of the said engineer :

- (2) All such works matters and things shall be constructed executed and done so as not to cause any injury to

such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Company shall make compensation in respect thereof to the railway company:

A.D. 1915.

- (3) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

36. The following provisions for the protection of the county council of the administrative county of Chester (in this section referred to as "the county council") shall unless otherwise agreed between the Company and the county council apply and have effect with respect to the exercise of any powers of the Company in or affecting any main road or any county or hundred bridge or the approaches thereto in the limits of supply (other than main roads maintainable by an urban district council under the provisions of section 11 (2) of the Local Government Act 1888) (that is to say):—

For protection of Cheshire County Council.

- (1) All new mains pipes and works (not being replacements of existing mains pipes and works) to be laid in or along any such road or in or upon or across any such bridge or approach shall be laid in such position in or at the side thereof and at such depth and in the case of a main pipe or work which in the opinion of the county surveyor it is reasonably necessary to lay otherwise than in the roadway or footway over any such bridge the same shall be laid or carried on the outside of such bridge and in such manner as the county council in writing under the hand of their surveyor may in each case reasonably direct:

A.D. 1915.

- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such road bridge or approach be not less than seven days instead of three days :
- (3) The plan required by section 9 of the last-mentioned Act shall as regards any such bridge be on a scale of not less than four feet to an inch and in respect of any such road or bridge approach on a scale of not less than 1/2,500 and such plans shall be accompanied by sections drawn to suitable scales to clearly show the proposed works and shall be delivered to the county council or their surveyor by the Company not less than in the case of a bridge or bridge approach fourteen days and in all other cases seven days before the Company commence to open break up or interfere with any such road bridge or approach or other property of the county council :
- (4) The Company shall not interfere with the structural part of any such bridge or approach without the consent in writing of the county council which consent may be given upon such conditions as the county council may reasonably determine and under the hand of their clerk :
- (5) The exercise of any powers of the Company shall not prejudice or affect the right of the county council at any time to alter the level of deviate or improve in any manner they think fit any main road in or along which any mains pipes or works of the Company shall have been laid and the Company shall with all reasonable dispatch on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the county council shall repay to the Company the expense reasonably incurred by the Company in effecting any such alteration of the position of any such mains pipes or works :

- (6) The exercise of any powers of the Company shall not prejudice or affect the right of the county council at any time to remove alter rebuild widen or repair any county or hundred bridge or the approaches thereto or the roadway over the same over or near or attached to which any mains pipes or works of the Company are carried in the same manner as they might have removed altered rebuilt widened or repaired such bridge or the roadway over the same or the approaches thereto if such mains pipes or works had not been laid over or near or attached to such bridge and the county council shall not make any compensation to the Company for any expense or loss to which the Company may be put by reason or in consequence of any such removal alteration rebuilding widening or reparation and in the event of any such bridge or the roadway over the same or the approaches thereto over or near or attached to which any such mains pipes or works are laid being removed altered rebuilt widened or repaired as aforesaid the Company shall at their own cost in all things alter the position of any works by which such mains or pipes are carried over or near or attached to such bridge or the roadway over the same or the approaches thereto as aforesaid Provided that during the removal alteration rebuilding widening or reparation of such bridge or the roadway over the same or the approaches thereto as aforesaid the county council shall afford all reasonable facilities to enable the Company temporarily to carry such mains and pipes across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes :

- (7) All works shall be so executed by the Company as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such bridge or approach and the Company shall not break up at any one time a greater consecutive length than one hundred yards of any such road bridge or approach and a clear space of two hundred and fifty yards shall intervene between each part of

A.D. 1915.

any such road bridge or approach as may be broken up:

- (8) The Company shall fill in and properly ram to the satisfaction of the county surveyor any trench or excavation made by them in any main road including the roadway over any such bridge and approach in the execution or in the repair of any of the works of the Company and after they have done so the county council may if they so elect and shall give written notice to the Company of such their desire reinstate and make good the surface of the road and for the work so carried out by the county council the Company shall on demand repay to the county council the expenses reasonably incurred by the county council in the execution of such works as certified by the county surveyor:
- (9) If the Company in the execution of any works in or affecting any such road bridge or approach as aforesaid shall cause any damage injury or disturbance to such road bridge or approach and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the county council after fourteen days' notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works:
- (10) Any dispute or difference which may arise between the county council and the Company touching this section or anything to be done or not to be done thereunder shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of either party and the Arbitration Act 1889 shall apply to the arbitration.

For protection of urban district council

37. For the protection of the urban district councils of Altrincham Hale and Bowdon and the rural district council of

Bucklow (each of which councils are in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say):—

A.D. 1915.
—
cils of Altrin-
cham Hale
and Bowdon
and rural
district
council of
Bucklow.

- (1) All new mains and pipes of the Company (not being replacements of existing mains and pipes) to be laid in along or across any street or road in the district of the council (other than main roads not maintainable by an urban district council under the provisions of section 11 (2) of the Local Government Act 1888) shall be laid in such position in or at the side thereof and at such depth as the council in writing under the hand of their surveyor may reasonably direct:
- (2) The Company shall not without the consent of the council or their surveyor (which consent shall not be unreasonably withheld) open a greater continuous length of any such street or road at one time than one hundred yards or leave a less space than fifty yards between any two consecutive openings or open a greater continuous length than fifty yards at any place where such opening would leave insufficient space for the passage of two vehicles abreast:
- (3) The notice required by section 8 of the Gasworks Clauses Act 1847 shall not be less than seven days (instead of three days) except in cases of emergency and of laying connecting or repairing consumers' service pipes:
- (4) Nothing in this Act contained shall interfere with the right of the council to alter the level of deviate or improve in any manner they think fit any such street or road culvert or drain in along or over which any mains pipes or works of the Company shall have been laid and the Company shall on the expiration of fourteen days after receiving notice in writing under the hand of the clerk or surveyor to the council so to do proceed to alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined in the manner hereinafter prescribed and the council shall repay to

A.D. 1915.

the Company any expenses reasonably incurred by the Company in complying with this subsection :

- (5) All works of the Company so far as they affect any such streets or roads shall be so executed by the Company as not to stop or (so far as reasonably practicable) to interfere with the traffic on any street or road :
- (6) Any dispute or difference which may arise between the council and the Company touching this section or anything to be done or not to be done thereunder shall be settled by arbitration by an engineer or other fit person to be appointed on the application of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the arbitration.

Powers as to
mains and
pipes for
ancillary
purposes.

38. Subject to the provisions of this Act the Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Construction
and placing
of pipes &c.
between
mains and
meters.

39. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the size and materials of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as the same are intended to be covered over :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers

circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company : A.D. 1915.

- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

40. The power to enter premises and to remove pipes meters and fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Removal of pipes meters &c. where supply of gas discontinued.

A.D. 1915.

Power to
lay pipes in
private
streets.

41. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act or the Acts of 1872 and 1893:

Provided that the local authority of the district within which such street is situate shall be deemed in addition to any other persons to be persons having the control or management of such street for the purposes of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Exemption
of apparatus
from distress
execution
&c.

42.—(1) No gas engines apparatus fittings or appliances let for hire by the Company under the powers of the Acts of 1872 and 1893 shall be subject to any distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such gas engines apparatus fittings or appliances are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

(2) All gas engines apparatus fittings and appliances let by the Company on hire under the provisions of the Acts of 1872 and 1893 shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company provided that such gas engines apparatus fittings and appliances have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

(3) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any gas engines apparatus fittings and appliances are or shall be fixed.

Gas con-
sumers to
give notice
to Company
before
removing.

43. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in

default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the date of such notice being given or the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note issued after the commencement of this Act for gas charges payable to the Company.

A.D. 1915.

44. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or a separate supply of gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Minimum charge for gas laid on to premises having a supply of electricity or power gas.

45. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing and inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Anti-fluctuators.

A.D. 1915.

Period of
error in
defective
meter.

46. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen in the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Recovery of
demands.

47. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties &c.

48. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or the Acts of 1872 and 1893 or any byelaws made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Repeal.

49. There shall be repealed as from the commencement of this Act the Act mentioned in the Schedule to this Act to the extent in the second column of that Schedule mentioned.

Saving as to
general Acts.

50. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of Act.

51. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may be in whole or in part charged against revenue.

The SCHEDULE referred to in the foregoing Act.
A.D. 1915.

Title.	Extent of Repeal.
Altrincham Gas Act 1893	Sections eleven twenty-seven thirty thirty-one fifty-six and fifty-seven.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR
FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.C.

